

of its Connected Parties is subject to any Sanctions.

16.2 Client Funds.

- a) The Client represents and warrants that it is acting as a principal and has legal title to all funds used in connection with the transactions, and that any transaction is being undertaken in accordance with applicable law.
- b) The Client represents and warrants that the Client has entered into this Agreement for lawful and commercial purposes connected with the Client's business and not for the purpose of investment or speculation.
- c) The Client further represents and warrants that each use of the Services by the Client is exercised in connection with the Client's line of business and to manage the risk associated with an asset or liability owned or incurred, or reasonably likely to be owned or incurred, in the conduct of the Client's business.
- d) The Client acknowledges and agrees that all funds which Convera receives from the Client for remittance purposes or held for the account of the Client may be applied by Convera for the satisfaction or set off of any payments or charges due, owing or payable to Convera or any other third parties entitled to such payments or charges.

16.3 Authority. The Client represents and warrants that the individual(s) signing the Trading Application has/have the authority to agree to bind the Client to the Agreement, and that the person(s) signing the Trading Application is/are authorised to act on the Client's behalf and is/are authorised to empower each Authorised Person appointed in accordance with clause 7.1.

16.4 Disclosure. The Client understands that Convera takes appropriate measures to ensure that it is not participating or assisting in money laundering or terrorist financing. The Client agrees that Convera (or any Convera Group Company), at its sole discretion, may disclose any transaction-related information in order to satisfy Convera legal obligations under applicable law, including, but not limited to, anti-money laundering, trade and economic sanctions laws and/or regulations, or as may otherwise be required by law or court order. Furthermore, such disclosure may be made to any governmental agency, body or department that exercises regulatory or supervisory authority with respect to Convera operations, where such disclosure is made to satisfy routine governmental audit or examination requirements or as part of informational submissions required to be made to such governmental entities in the ordinary course of business.

16.5 Additional Information. Upon request, the Client agrees to provide any additional information that Convera may need to satisfy its obligations under clause 16.4.

16.6 Transaction Processing. The Client understands, acknowledges and agrees that all transactions, wherever originated, may be processed by Convera or may be processed on behalf of Convera by one or more of its affiliated Convera Group Companies, one or more of which may be located outside the country of the Client. As such, all transactions, wherever originated, will be processed in accordance with the laws and regulations of the jurisdiction where the transaction is being processed, including but not limited to, those laws and regulations relating to anti-money laundering, anti-terrorism and foreign asset control.

16.7 Regulatory Termination/Cancellation. Convera may terminate this Agreement and/or cancel or reject any Instruction at any time, with or without notice, in the event of any regulatory non-compliance by the Client, or if the Client becomes subject to any Sanctions, or if otherwise required to comply with applicable laws or regulations.

16.8 Advice. Any recommendation or statement of opinion that our representatives provide to you will be general in nature and do not take account of your objectives, financial situation or needs. Because of this before you act on it or acquire the Services you should consider its appropriateness having regard to your own objectives, financial situations or needs.

16.9 Relationship. The Client acknowledges that the relationship between the Parties is one of principal to principal and that no fiduciary relationship is created by virtue of the provision of the Services.

16.10 Not a U.S. Person. The Client hereby represents and warrants that it is not a U.S. Person under applicable U.S. laws and regulations. The Client further agrees to promptly notify Convera if it becomes a U.S. Person. Convera is not liable to the Client for any regulatory reporting obligations not known to Convera.

16.11 The Client understands and agrees that it is its responsibility to ensure that any Instructions submitted by the Client to Convera fully complies with all applicable Sanctions Laws or Export Control Laws. The Client further understands and agrees that it must comply with the Company's policies regarding Sanctions Laws and Export Control Laws, as